
IN THE
Supreme Court of the United States

RACHEL CHERWITZ, *et al.*,

Applicants,

v.

UNITED STATES,

Respondent.

ON PETITION FOR A WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

APPLICATION FOR STAY

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**TO THE HONORABLE SONIA SOTOMAYOR, ASSOCIATE JUSTICE OF THE
UNITED STATES SUPREME COURT AND CIRCUIT JUSTICE FOR THE
SECOND CIRCUIT:**

INTRODUCTION

Pursuant to 28 U.S. Code § 2101 and Supreme Court Rule 23, Petitioner-Defendants Rachel Cherwitz and Nicole Daedone respectfully request an emergency stay pending their concurrently filed petition for a writ of certiorari (the “Petition”) from the Second Circuit’s order (the “Order”) denying defendants’ petition for a writ of mandamus, dated April 10, 2025 in *In re Rachel Cherwitz and Nicole Daedone*, No. No. 25-553. Defendants’ mandamus petition requested that the Second Circuit reverse the September 27, 2024 and February 26, 2025 orders (the “District Court Orders”) of the U.S. District Court for the Eastern District of New York (Gujarati, J.). Because trial is scheduled to begin on May 5, 2025, defendants also respectfully request expedited review of the Petition.¹

The district court is on the cusp of permitting the government to use stolen and privileged corporate material against defendants at their upcoming May 5, 2025 trial, as well as evidence derived therefrom. Not only will that ruling cause irreparable harm to defendants and their prior company—which cannot be rectified through a post-trial appeal—but it also will broadly chill privileged communications in the corporate context, due to the ever-present risk of corporate theft and data breaches.

¹ “DE,” “CDE,” “A,” “SEA,” “SA,” and “APP” mean district court docket entry, circuit court docket entry, circuit court appendix, circuit court sealed *ex parte* appendix, circuit court sealed appendix, and appendix filed with this Court, respectively. “Dkt. No.” means this Court’s docket entry. Unless otherwise noted, case text quotations omit all internal quotation marks, citations, alterations and footnotes.

Because this Court’s decision will have significant implications on the trial preparation and the trial itself, a stay is warranted to allow this Court to consider and rule on this dispositive issue. Furthermore, given that the district court has ruled that the stolen privileged corporate material is not privileged and the Second Circuit denied defendants’ mandamus petition, a failure to stay the proceedings could also result in further dissemination of the stolen privileged documents at issue and, thus, cause further damage to defendants. Accordingly, defendants will suffer irreparable harm if a stay is not granted.

STATEMENT OF THE CASE

I. The One-Count Indictment

In approximately 2018, the Federal Bureau of Investigation (“FBI”), led by SA Elliot McGinnis, initiated an investigation into the wellness company OneTaste, Inc. (“OneTaste” or “the Company”). Defendant Nicole Daedone served as OneTaste’s Chief Executive Officer from approximately 2004 to 2017. Defendant Rachel Cherwitz was OneTaste’s leading salesperson from approximately 2009 to May 2018. Five years after starting its investigation, on April 3, 2023, the government obtained a single-count indictment charging a forced labor conspiracy under 18 U.S.C. § 1594(b). DE:1.

II. The Theft of OneTaste’s Privileged Documents

Years before indictment, in June 2017, at the direction of outside counsel Davis Goldberg & Galper, PLLC (“DGG”), OneTaste prepared a document to aid in a legal risk assessment in anticipation of potential litigation. A:62–63 ¶¶8–10; A:70 ¶¶6–8; A:43 ¶3. This internal review related to false allegations circulating at that time

against the Company and senior executives, including defendants. A:63 ¶¶10–11. The goal was to gather any allegations that could be made by persons associated with OneTaste to be assessed by outside counsel, regardless of their credibility or veracity. *Id.* ¶¶11–13. OneTaste’s then-CEO asked a small team to gather the information counsel requested, and told them the Privileged Risk Assessment was privileged and confidential; indeed, an early outline (the “Privileged Outline”), screenshots of a draft (the “Privileged Screenshots”), and the final document (the “Privileged Risk Assessment”; collectively, the “Stolen Privileged Documents”) were clearly marked privileged. *Id.* ¶¶11–15; A:43–44 ¶¶4–6; A:66 ¶¶6–7; SEA:1–2 ¶¶4–6; SEA:4–43.

OneTaste took significant precautions to keep these documents confidential, including limiting access to senior management, maintaining them in a location on OneTaste’s servers with limited access, and prohibiting the documents from being emailed. A:63 ¶15; A:43–44 ¶¶4–8; A:66 ¶7; SEA:1–2 ¶¶4–8. On July 17, 2017, members of OneTaste’s senior management met with DGG and hand-delivered a single, hard copy of the Privilege Risk Assessment. A:64 ¶16. In other words, the Privileged Risk Assessment was considered so highly sensitive and confidential that OneTaste executives would not even email it to their own outside counsel.

Mitch Aidelbaum, OneTaste’s former IT contractor, stole the highly sensitive and confidential Privileged Outline and Privileged Risk Assessment from OneTaste’s servers. Aidelbaum entered into a consulting agreement with OneTaste on February 22, 2015 to provide IT services, which he provided until his contract was terminated in January 2016. A:67 ¶¶10–11. Upon his contract’s termination, Aidelbaum was no

longer authorized to access OneTaste’s servers, cloud services, records or documents. *See id.* ¶¶12–13. But sometime after OneTaste finalized the Privileged Risk Assessment in July 2017, Aidelbaum accessed OneTaste’s servers—without authorization—and stole the Privileged Outline and the Privileged Risk Assessment, along with numerous other confidential OneTaste documents. *See id.* ¶¶12–14.

Based on the location and nature of the cache of stolen documents, Aidelbaum’s theft appears to have been an act of corporate espionage. Aidelbaum stole the documents from Yia Vang’s computer, who was OneTaste’s curriculum director and content producer. A:82; A:44 ¶7. In addition to the Privileged Outline and Privileged Risk Assessment, Aidelbaum stole over 61,000 files. *See* A:81–82; DE:33; DE:34; DE:39. Some of these documents were OneTaste’s confidential and proprietary information, which competitors could use to directly compete with OneTaste. *See* DE:33; DE:34; DE:39.

Aidelbaum’s corporate espionage violated federal law. *See* 18 U.S.C. §§ 1030(a)(2), 1832(a). The FBI agents should have investigated and prosecuted Aidelbaum for his crimes, as the FBI has done in similar cases. *See, e.g., United States v. Calonge*, 74 F.4th 31, 33 (2d Cir. 2023). But that is not what they did here. Instead of investigating and prosecuting him or at least notifying OneTaste—the victim of his crimes—it helped Aidelbaum cover them up.

III. The FBI Takes Possession of the Stolen Privileged Documents and Uses Them to Build Its Case

On January 26, 2021, several years after Aidelbaum’s crimes against OneTaste, the FBI case agents visited Aidelbaum’s home, without prior notice. A:74

¶1; A:80; A:83. Aidelbaum told the agents he had the document identified herein as the Privileged Risk Assessment, as well as other OneTaste documents. A:74–75 ¶¶2, 5. He specifically informed the agents the electronic file (1) was entitled “Attorney Client Privilege”; (2) was marked “Attorney Client Privilege”; (3) had been created *after* he left the Company; and (4) was taken without OneTaste’s knowledge. A:74 ¶3. SA McGinnis’s notes and interview report further reflect Aidelbaum told the agents the document was authored by Yia Vang and came from her laptop. A:82; A:85. In short, he told the agents he stole the Privileged Risk Assessment from OneTaste and it was marked attorney-client privileged.

The FBI agents then gave Aidelbaum a thumb drive, to which he saved the Privileged Risk Assessment, and returned it to the agents. A:74 ¶4. The agents did not give Aidelbaum a property receipt for this thumb drive containing the Privileged Risk Assessment. *See id.* Subsequently, on February 1, 2021, the United States Attorney’s Office (“EDNY”) issued a grand jury subpoena to Aidelbaum for the remaining non-privileged OneTaste documents in his possession, which he then copied to an FBI-provided hard drive. *See* A:75 ¶¶5–6. This time, the agents gave him a property receipt for the non-privileged OneTaste documents, whereas they left no record of taking any privileged documents. *See id.*

In addition to Aidelbaum’s sworn declaration he told the agents the Privileged Risk Assessment was marked attorney-client privileged, the case agent’s own handwritten notes from the meeting clearly reflect the same. A:84. Thus, it is crystal clear the agents were on notice as of that date that they possessed privileged material.

Tellingly, though, the FBI agents left that fact out of their official interview report. That appears to have been their first step in covering up Aidelbaum's crimes, so they could use the Privileged Risk Assessment to build this entire prosecution.

Indeed, as described further below, the agents did not immediately segregate this privileged material and put in place a taint team, per DOJ policy. *See* DOJ Manual 9-13.420(E)–(F); *see also SEC v. Rajaratnam*, 622 F.3d 159, 183 n.24 (2d Cir. 2010); *United States v. Landji*, No. (S1) 18 Cr. 601, 2021 U.S. Dist. LEXIS 222729, at *68–69 (S.D.N.Y. Nov. 18, 2021). Nor did they notify the privilege holders, which the government has acknowledged is the proper protocol to follow when it obtains privileged material. *See* A:157. Instead, the agents immediately began to rely on the Privileged Risk Assessment.

Five days after taking the material, SA McGinnis wrote an email summarizing the information contained in the Privileged Risk Assessment and sent it to at least one other agent. The government has refused to produce this email or describe how the agents used the privileged information circulated by email. Despite the government's stonewalling, though, the evidence the agents improperly used the Privileged Risk Assessment goes far beyond that one email. A review of the government's 18 U.S.C. §3500 material produced to the defense on November 18, 2024, as well as other information the defense has gathered, demonstrates the government directly used the Privileged Risk Assessment not only to identify witnesses to interview, but also to determine which topics to ask them about.

For example, in the first two weeks after clandestinely receiving the Privileged Risk Assessment on January 26, 2021, the agents contacted at least seven persons listed in the Privileged Risk Assessment. The first person the FBI interviewed after taking the Privileged Risk Assessment from Aidelbaum is listed on its first page. By July 2021, the agents had contacted at least 15 people listed in the Privileged Risk Assessment. By the end of 2021, they had contacted at least 20 people listed therein, none of whom they contacted prior to taking the documents from Aidelbaum. Some of these people had not been associated with OneTaste for years, and by no means would have been obvious interview candidates. Moreover, during many of these interviews, the agents asked individuals about specific, non-public incidents that were discussed in the privileged material.

In November 2021, another former OneTaste customer, Kara Cooper, also emailed screenshots of a draft of the Privileged Risk Assessment—identified herein as the Privileged Screenshots—to SA McGinnis. Defendants learned from the government that Cooper obtained the screenshots or accessed the Privileged Risk Assessment draft via a former OneTaste employee, who in turn received unauthorized access from Aidelbaum. A:46 ¶6. Again, although the Privileged Screenshots are clearly marked attorney-client privileged, the FBI agents did not put in place a taint team or notify the privilege holders.

IV. The Prosecution Team Takes Possession of the Stolen Privileged Documents

At some point, the Privileged Outline, Privileged Risk Assessment, and Privileged Screenshots all came into EDNY's possession. As discussed below, the first two documents were located in EDNY's *Cherwitz* case file in 2024 and never produced

in discovery. EDNY produced the third document in discovery on September 18, 2023. The government has refused to disclose when these documents came into EDNY's possession; however, it is clear it did not implement appropriate taint procedures whenever it obtained the documents. In fact, in the government's discovery letter disclosing the Privileged Screenshots, it failed to describe them as potentially privileged, even though they were clearly marked as such and the government had reviewed them closely enough to describe them and their provenance. It described them only as "[s]creenshots of a document provided by [Kara Cooper]." DE:43 at 3.

In total, during 29 discovery productions, the government produced over 2.6 terabytes of data, containing more than 710,700 files, which includes over 10,000 videos, 8,000 audio files, and 171,100 images. Not surprisingly, given the government's ongoing and voluminous discovery productions—including almost 160,000 pages in September and October 2024 alone—and that it had not flagged this document as potentially privileged, it took defendants time to identify this document as potentially privileged. *See, e.g.*, A:46 ¶2; A:72–73 ¶¶12–14; DE:41; DE:43; DE:50; DE:52; DE:58. On April 20, 2024, the Company identified the potentially privileged nature of the document, *see* A:46 ¶3; on April 24, 2024, after verifying it was privileged, the Company demanded its return from the government, *see* A:49. The government put in place a filter team for the first time. A:46 ¶5. In response to a later follow up inquiry, the filter team represented it had no other versions of the Privileged Screenshots—a representation that was wrong. A:46–47 ¶¶6–7.

V. Defendants' Motion to Dismiss Based Upon the Privileged Screenshots

In short order, defendants and the Company filed appropriate motions. A:52–60 (pre-motion letter); SA:1–43 (motion to dismiss); *In re Petition of One Taste, Inc.*, 24-MC-2518(DG), DE:1 (petition for return of the materials under Federal Rule of Criminal Procedure 41(g)). In support of their motion, defendants sought to submit affidavits without waiving their Fifth Amendment right against self-incrimination. *See* SA:34; SA:99–101. In response, among other things, the government claimed waiver, arguing defendants had not found the Privileged Screenshots fast enough, even though it is the government's policy and practice to notify privilege holders, rather than to misidentify and bury a privileged document in a mountain of discovery. *See, e.g., United States v. Nejad*, 487 F.Supp.3d 206, 218–27 (S.D.N.Y. 2020) (discussing government conduct warranting dismissal, including burying *Brady* material among other documents).

The government also specifically reserved the right to use the Privileged Screenshots at trial, stating: “[T]he government reserves the right to do so should, for example, a court—or OneTaste—determine[] the Document is not privileged and/or is subject to an exception to the attorney-client privilege, and defendants assert a defense or testify inconsistently with the Document.” SA:55.

Meanwhile, defendants and the Company conducted their own investigation regarding the Privileged Screenshots and learned from Aidelbaum that he had turned over the final version of the Privileged Screenshots (the Privileged Risk Assessment) to FBI agents in January 2021. Thus, with their September 6, 2024 reply, defendants

filed a declaration from Aidelbaum and incorporated the material Aidelbaum had provided the FBI into their privilege assertion, even though neither they nor the Company had yet received the material from the government. A:74–76.

In its September 20, 2024 response, the government suddenly admitted it had the Privileged Outline and the Privileged Risk Assessment—*since January of 2021*, which it located at the FBI. These two versions were located in a folder *with Aidelbaum’s name on it, where they were both saved with “file names [including] the words ‘Attorney Client Privilege: Confidential and Privileged.’”* SA:112 (emphasis added). It also conceded the agents had accessed, reviewed and disseminated information from the Stolen Privileged Documents. As noted above, it admitted that, five days after the Aidelbaum interview, an agent sent an email containing a “bullet point list of information...associated with [Aidelbaum],” which appeared to be derived from the Privileged Risk Assessment. *Id.*

The government also claimed the documents were “not sent to the [EDNY] until they were provided to a member of the Privilege Review Team in September 2024.” *Id.* By October 7, though, the government was forced to admit it was wrong again, disclosing the Privileged Outline and the Privileged Risk Assessment, in fact, had been located in its *Cherwitz* case file. A:115–16. The government also reserved the right to use these documents at trial. *In re Petition of OneTaste, Inc.*, 24-MC-2518(DG), DE:17 (“[T]he government is preparing for trial against the *Cherwitz* defendants and the Challenged Materials could be necessary or relevant for a number of legitimate purposes at trial, including in re-direct examinations, for potential cross

examination of defense witnesses, or in the government’s rebuttal case to respond to unanticipated defense arguments.”). The Company filed a second motion for return of all Stolen Privileged Documents on November 12, 2024.²

VI. The District Court Denies Defendants’ Motions to Dismiss Based on the Privileged Screenshots

Defendants asserted privilege over the Privileged Outline and the Privileged Risk Assessment as soon as they learned of their existence. *See* SA:83–109. The court directed the government to submit those two documents on September 23, 2024. DE:158. Subsequently, at the September 27, 2024 status conference, the court specifically declined to rule on those two documents, directing the parties to meet and confer regarding them before bringing any additional motion. *See* A:93 (“The issues raised about those other documents in the additional filings should be addressed by the parties with each other in the first instance, including, as appropriate, with the Filter Team rather than the Trial Team. I have considered the entirety of the record, but will address only the two bases raised in the instant motion, one of which relates to the [Privileged Screenshots].”). The court set no deadline.

The court then made a brief oral ruling on defendants’ motion to dismiss pertaining to the Privileged Screenshots. *See* A:104–12. Notably, it concluded defendants had not shown good cause as to why they had not filed their motion to dismiss based on the Privileged Screenshots by the district court’s January 16, 2024,

² The government has said the documents will remain segregated with the Filter Team pending resolution of the Rule 41(g) motion. A hearing is scheduled for April 23, 2025.

motion deadline, even though the uncontroverted record shows defendants were not aware of this document's privileged nature until April 20, 2024. A:105–06. The court attributed no fault to the government for failing to put in place a taint team, failing to notify the privilege holders it had taken possession of the Privileged Screenshots, failing to describe the document as potentially privileged in its discovery letter, or for burying the document in a mountain of other evidence. *See id.* Rather, the court deemed the motion untimely, because defendants did not seek an extension to file its motions—which almost certainly would have been denied—to look for a document they did not know existed and had no reason to believe would be in discovery. *See id.* Similarly, the court concluded defendants waived privilege by “having waited so long to assert privilege,” A:111, even though the Company asserted privilege immediately after verifying the document's privileged nature and defendants sought leave to file a motion to dismiss within weeks.

The district court also rejected defendants' request for an evidentiary hearing. Instead, it ruled the Privileged Screenshots were not privileged and defendants lacked standing to assert the privilege. It further held defendants were not permitted to submit affidavits to support their privilege claims in a manner that addressed their concerns about waiving their Fifth Amendment right against self-incrimination. *See* A:110–11; SA:34. Finally, without shifting the burden to the government to show an independent source for its evidence, the court concluded the record did not support the claim that but-for the use of the Privileged Screenshots, the indictment would not exist. A:111. Regardless, if it had found a constitutional violation, the court held the

only appropriate remedy would have been to preclude the government from using the Privileged Screenshots at trial, not dismissal. *See id.* at 111–12.

VII. The District Court Denies Defendants’ Motion to Dismiss Based on the Privileged Outline and Privileged Risk Assessment

As noted above, the government disclosed the FBI possessed the Privileged Outline and Privileged Risk Assessment on September 20, 2024. SA:112. On October 7, 2024, the government disclosed EDNY also possessed them. A:115–16. Subsequently, on November 18, 2024, the government disclosed its 3500 material. Thereafter, the defense reviewed it and conducted a painstaking comparison between the Stolen Privileged Documents and the 127 sets of witness reports to develop the record the court had demanded at the previous status conference, establishing the agents had used the Stolen Privileged Documents to build this case and secure the indictment. On December 25, 2024, an issue arose with Ms. Cherwitz’s prior counsel that ultimately led to their disqualification on January 8, 2025. She retained new counsel, who appeared on January 15, 2025. As such, little work was done by Ms. Cherwitz’s prior counsel during this time period. Moreover, the government declined to meet and confer with Ms. Daedone’s counsel pending Ms. Cherwitz’s retention of new counsel. Just over one week after appearing, new counsel requested leave to file a renewed motion to dismiss the indictment on January 24, 2025. A:117.

Prior to doing so, defense counsel met and conferred with the government on January 23, 2025, as the court had previously directed. During the meeting, the government specifically refused to agree that, under *Simmons v. United States*, 390 U.S. 377 (1968), defendants were permitted to file *ex parte* affidavits in support of

their motions, which the government could not later use against them. Thus, in its request for leave, defendants requested a ruling from the court under *Simmons* to file such affidavits and also sought a hearing pursuant to *United States v. Kastigar*, 406 U.S. 441 (1972). A:129, 138.

On February 26, 2025, in a brief oral ruling, the court denied defendants' renewed motion. A:153–56. Although (1) the facts necessary for defendants' motion were disclosed between September 20, 2024 and November 18, 2024, including voluminous 3500 material the defense had to subsequently review, (2) Ms. Cherwitz thereafter obtained new counsel, and (3) there was no deadline for the renewed motion, the court found it untimely because defendants did not file it by January 16, 2024. *See id.* Yet again, the court attributed no fault to the government for its purposeful reliance on privileged material, its failure to put in place a taint team, and its failure to disclose the documents for nearly *four years*. *See id.* The court summarily denied defendants' motion, including rejecting defendants' argument that the two documents are privileged. *See* A:156.

VIII. The Second Circuit Proceedings

Given the gravity of the constitutional rights at stake, the risk of improper disclosure of privileged material, the court's incorrect rulings, and the broad implications thereof, defendants sought mandamus and to stay the district court proceedings. On March 27, 2025, the Second Circuit issued an order denying defendants' request for a stay, to the extent it sought a temporary stay pending review by a three-judge panel, and referred the mandamus petition to a three-judge

panel. APP:B. Notably, in its response to defendants’ stay motion, the government continued to reserve the right to use the Stolen Privileged Documents at trial to cross-examine defense witnesses or in its rebuttal case. CDE:23.1.

On April 10, 2025, the Second Circuit issued an order denying defendants’ mandamus petition, stating defendants “ha[d] not demonstrated that exceptional circumstances warrant the requested relief.” APP:A. It also denied the stay. *Id.*

REASONS FOR GRANTING THE STAY

I. Legal Standard

To obtain a stay, “an applicant must show (1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In close cases, “it may be appropriate to balance the equities—to explore the relative harms to applicant and respondent, as well as the interests of the public at large.” *Conkright v. Frommert*, 556 U.S. 1401, 1402 (2009). Defendants meet all three factors required. Furthermore, the balance of equities favor Ms. Cherwitz and Ms. Daedone.

II. There is Reasonable Probability That Four Justices Will Consider the Issue Sufficiently Meritorious to Grant Certiorari

First, defendants have made a strong showing that at least four Justices will consider the issue here is sufficiently meritorious to grant defendant’s Petition. “A petition for a writ of certiorari will be granted only for compelling reasons.” Sup. Ct. R. 10. As detailed in defendants’ Petition, this Court has “repeatedly and expressly

reaffirmed that mandamus...remains a ‘useful safety valve’ in some cases of clear error to correct ‘some of the more consequential attorney-client privilege rulings.’” *In re Kellogg Brown & Root, Inc.*, 756 F.3d 754, 761 (D.C. Cir. 2014) (Kavanaugh, J.) (quoting *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 106-13 (2009)). This case involves such an attorney-client privilege ruling.

Not only did the government intentionally rely on stolen privileged corporate material, but the district court failed to adhere to the basic procedural protections that would have permitted the defendants to vindicate their rights and protect the attorney-client privilege. Namely, it did not permit the defendants to submit affidavits under the protections of *Simmons*, and it did not hold a *Kastigar* hearing. Mandamus is appropriate in these extraordinary circumstances where the defendants did not have the opportunity to appropriately protect their rights before the district court, the government has said it will expose the privileged materials at trial, and the district court’s ruling will set a broad precedent undermining the attorney-client privilege. *See Cheney v. U.S. Dis. Court*, 542 U.S. 367, 381 (2004). These issues have “broad applicability and influence,” and their resolution will “forestall future error in trial courts” and “provide guidance for courts...in an important, yet underdeveloped, area of law.” *In re City of New York*, 607 F.3d 923, 942 (2d Cir. 2010).

Further, a stay is warranted here because the Petition presents a novel and significant issue, and it is appropriate for appellate review on mandamus. *See In re The City of New York*, 607 F.3d 923, 939 (2d Cir. 2010) (“To determine whether

mandamus is appropriate in the context of a discovery ruling, [the Court] look[s] primarily for the presence of a novel and significant question of law...and...the presence of a legal issue whose resolution will aid in the administration of justice.” (internal quotation marks omitted)). The Petition presents the novel question of whether the government can use stolen and privileged corporate material to prosecute a company’s executives, without notifying the company and/or over the company’s objections and refusal to waive privilege.

For the foregoing reasons, there is a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari.

III. There Is a Fair Prospect That a Majority of the Court Will Vote to Reverse the Judgment Below Because the Arguments Advanced Are Plausible

Second, there is a “fair prospect” that a majority of the court will vote to reverse the judgment below because the arguments advanced in the courts below are plausible. *See, e.g., John Doe Agency v. John Doe Corp.*, 488 U.S. 1306, 1310 (1989). As set forth above, the documents at issue are indisputably privileged. Defendants have submitted sworn affidavits establishing a small group of OneTaste’s senior management created the Stolen Privileged Documents at outside counsel’s direction as part of an internal review of false allegations against the Company and members of senior management, including defendants; that review’s primary purpose was to obtain legal advice in anticipation of potential litigation; the documents were treated as highly sensitive and confidential; the Company secured the documents by limiting access to them and not emailing them; and the Company hand-delivered the Privileged Risk Assessment to counsel.

There is also no dispute that the government has accessed the Stolen Privileged Documents. Indeed, the government admits that the FBI agents have accessed, reviewed, and disseminated information from the Stolen Privileged Documents. Specifically, it noted that five days after interviewing Mitch Aidelbaum—a former OneTaste IT contractor from whom the FBI obtained the Privileged Risk Assessment and Privileged Outline—an agent sent an email containing a “bullet point list of information...associated with [Aidelbaum],” which appeared to be derived from the Stolen Privileged Documents. SA:112. Moreover, in October 2024, EDNY admitted that its *Cherwitz* case file contained the Privileged Outline and the Privileged Risk Assessment. *See* A:115–16.

Because the Stolen Privileged Documents are indeed privileged, and the government in fact accessed these privileged materials, the burden shifts to the government to show an independent source for its evidence. *See United States v. Hoey*, 725 Fed. App’x 58, 61 (2d Cir. 2018) (imposing only the minimal burden to show the government had access to privileged materials pertaining to the prosecution’s subject matter before shifting the burden). The government has not made such a showing, nor did the district court order it to do so. Instead, the opposite occurred: the § 3500 material produced in November 2024 revealed that the FBI used the Stolen Privileged Documents to guide its investigation and build its case.

Based on the record before the district court, dismissal of the indictment is warranted, because the government violated defendants’ rights to counsel and due process. *See United States v. Schwimmer*, 924 F.2d 443, 447 (2d Cir. 1991). But even

if the record was not fully developed, defendants had the right to submit *ex parte* affidavits in support of their motion that could not be used against them, *see, e.g., Simmons*, 390 U.S. at 394; *Fero v. Excellus Health Plan, Inc.*, No. 6:15-CV-06569-EAW-JJM, 2019 U.S. Dist. LEXIS 207871, at *11–12 (W.D.N.Y. Dec. 3, 2019), and the district court was required to hold a *Kastigar* hearing, after shifting the burden to the government. *See Hoey*, 725 Fed. App’x at 61; *United States v. Schwimmer*, 892 F.2d 237, 244–45 (2d Cir. 1989).

Defendants had standing to assert privilege under the common-interest and co-client doctrines, especially given that neither OneTaste nor defendants have waived the privilege. *See, e.g., United States v. Int’l Bhd. of Teamsters*, 119 F.3d 210, 215–16 & n.3 (2d Cir. 1997); *Schwimmer*, 892 F.2d at 243; *United States v. Dennis*, 843 F.3d 652, 657 (2d Cir. 1988); *Youngblood v. Menard, Inc.*, No. 3:22-cv-02822-SMY-GCS, 2024 U.S. Dist. LEXIS 148033, at *9–15 & n.5 (S.D. Ill. Aug. 19, 2024); *Supreme Forest Prods., Inc. v. Kennedy*, No. 3:16-cv-0054 (JAM), 2017 U.S. Dist. LEXIS 4421, at *4–10 (D. Conn. Jan. 12, 2017); *HSH Nordbank AG N.Y. Branch v. Swerdlow*, 259 F.R.D. 64, 71 (S.D.N.Y. 2009). The opportunity to submit *ex parte* affidavits would have further established standing; if the trial continues without allowing defendants to submit such affidavits under the protections of *Simmons*, their ability to do so will be lost.

Defendants did not waive the privilege. *See, e.g., In re Parmalat Sec. Litig.*, No. 04 MD 1653 (LAK) (HBP), 2006 U.S. Dist. LEXIS 88629, at *28 (S.D.N.Y. Dec. 1, 2006); *see Dukes v. Wal-Mart Stores, Inc.*, No. 01-cv-2252 CRB (JSC), 2013 U.S. Dist.

LEXIS 42740, at *15 (N.D. Cal. Mar. 26, 2013). Furthermore, defendants' motions were timely. *See, e.g.*, Fed. R. Crim. P. 12(c); *United States v. Milton*, 621 F. Supp. 3d 421, 426 (S.D.N.Y. 2022); *United States v. Shine*, No. 17-CR-28-FPG-JJM, 2019 U.S. Dist. LEXIS 98619, at *8 (W.D.N.Y. June 12, 2019); *United States v. Beras*, No. 99 CR. 75(SWK), 2004 U.S. Dist. LEXIS 11559, at *2 n.2 (S.D.N.Y. June 23, 2004).

Mandamus is appropriate to resolve these significant issues and to prevent the Stolen Privileged Documents and evidence derived therefrom from being disclosed at trial. *See, e.g.*, *United States v. Prevezon Holdings Ltd.*, 839 F.3d 227, 238 (2d Cir. 2016) (noting “liberal use of mandamus” to protect privilege); *In re Kellogg Brown*, 756 F.3d at 760–61 (Kavanaugh, J.) (granting writ to protect privilege); *In re von Bulow*, 828 F.2d 94, 98-99 (2d Cir. 1987). Defendants have no other adequate means of relief. *See, e.g.*, *Prevezon Holdings Ltd.*, 839 F.3d at 238; *In re City of New York*, 607 F.3d at 933–38; *In re Kellogg*, 756 F.3d at 761; *In re von Bulow*, 828 F.2d at 98–99. For the aforementioned reasons, defendants have shown a “fair prospect” that a majority of the court will vote to reverse the judgment below.

IV. Defendants Will Be Irreparably Injured Absent a Stay

Third, as also detailed in the Petition, defendants will be irreparably injured absent a stay in proceedings pending this Court's decision. In the District Court's Orders, it concluded that the Stolen Privileged Documents are not privileged. And the government has indicated that, if the Stolen Privileged Documents are deemed not privileged, it very well may use the documents at trial. *See* SA:55; *In re Petition of OneTaste, Inc.*, 24-MC-2518 (DG), DE:17 at 9; CDE:23.1 at 28. Once those documents are revealed during trial preparation and trial and relied upon by the

government, it will be too late to protect defendants' constitutional rights. *See, e.g., In re Roman Catholic Diocese of Albany, New York*, 745 F.3d 30, 33, 35–37 (2d Cir. 2014) (disclosure of potential sexual abuse by priests was harm not adequately remediable after final judgment); *In re City of New York*, 607 F.3d at 934 (disclosure of confidential police reports could not be remediated after final judgement); *In re von Bulow*, 828 F.2d at 98–99 (mandamus necessary to prevent revelation of attorney-client privileged information); *see also In re Kellogg*, 756 F.3d at 761 (“[A]ppeal after final judgment will often come too late because the privileged materials will already have been released. In other words, the cat is out of the bag.”).³

Furthermore, without a stay in the proceedings, the parties will be forced to prepare for trial with the assumption that the Stolen Privileged Documents may be admissible. This will potentially cause further dissemination of the privileged documents within the government, and thus irreparable injury to defendants. It also will result in additional motion practice on the admissibility of the documents based on other evidentiary issues, causing unnecessary litigation and further exposure the Stolen Privileged Documents. It further may impact the defendants' decision to present a defense case and whether the defendants take the stand at trial. Therefore, without a stay for the Supreme Court to rule on this issue, defendants will be irreparably harmed.

³ The defense has requested that the government keep the Stolen Privileged Documents segregated pending resolution of its petition and OneTaste's pending Rule 41(g) motion. In response, the government has said that the documents remain segregated with the Filter Team pending resolution of the Rule 41(g) motion.

Moreover, even if the prosecution does not present to the jury the Stolen Privileged Documents themselves, presenting evidence derived therefrom is just as damaging as presenting the privileged material itself. *See Prevezon Holdings Ltd.*, 839 F.3d at 238 (“Adverse use of confidential information is not limited to disclosure. It includes knowing what to ask for in discovery, which witnesses to seek to depose, what questions to ask them, what lines of attack to abandon and what lines to pursue, what settlements to accept and what offers to reject, and innumerable other uses.” (quoting *Ulrich v. Hearst Corp.*, 809 F. Supp. 229, 236 (S.D.N.Y. 1992))). Because the FBI had access to these documents for *four years* and built their case upon them, information derived from these documents will undoubtedly be presented at trial.

Thus, if this Court were to find that the Stolen Privileged Documents are indeed privileged without dismissing the indictment, it would alter the course of the trial because any evidence derived therefrom could be suppressed. *See United States v. Reyes*, 934 F. Supp. 546, 553 (S.D.N.Y. 1996) (suppressing evidence derived from violation of right to counsel); *People v. Joly*, 970 N.W.2d 426, 435 (Mich. Ct. App. 2021) (finding manifest corruption and suppressing evidence where government agent inadvertently came across a privileged email containing key incriminating evidence, but then intentionally “used the privileged information to further his investigation of defendant”). Further, any government personnel who have accessed the Stolen Privileged Documents or any information derived therefrom—such as the FBI agents or prosecutors who reviewed the documents or spoke to witnesses who were selected based on the documents—could be dismissed or recused as a result of

this Court's ruling. *See, e.g., State v. Robins*, 164 Idaho 425, 437 (2018); *State v. Robinson*, 209 A.3d 25, 59–60 (Del. 2019).

Accordingly, because this Court's decision will have significant implications on the trial preparation and the trial itself, a stay is further warranted to prevent irreparable injury to defendants.

V. While This Is Not a “Close Case,” the Balance of Equities Favors Ms. Cherwitz and Ms. Daedone

Lastly, comparing the relative harms to the defendants against the harm to the government as well as the public's interest, favors the defendants. It is in the public's interest to resolve the important question of whether the government can use stolen, privileged company documents to prosecute a company's executives, as opposed to the company itself, over the company's and executives' objections and refusal to waive privilege. This Court has emphasized the importance of the attorney-client privilege. Designed “to encourage full and frank communication between attorneys and their clients,” this rule of confidentiality “recognizes that sound legal advice or advocacy serves public ends and that such advice or advocacy depends upon the lawyer being fully informed by the client.” *Upjohn Co. v. United States*, 449 U.S. 383, 389 (1981). It also recognizes that a lawyer's “assistance can only be safely and readily availed of when free from the consequences or the apprehension of disclosure.” *Hunt v. Blackburn*, 128 U.S. 464, 470, 32 L. Ed. 488, 9 S. Ct. 125 (1888); *see Schwimmer*, 892 F.2d at 243 (stating that privilege “provides essential support for the constitutional right to the assistance of counsel” and that “[w]ithout the attorney-

client privilege, that right and many other rights belonging to those accused of crime would in large part be rendered meaningless.”).

If the government is permitted to access, disseminate and use a company’s stolen privileged material to develop its prosecution against a company’s executives, absent waiver, it will have a far-reaching chilling effect on corporate employees and counsel. If employees recognize that whatever privileged communications they have with company attorneys may be stolen and readily used to prosecute them, they will be disinclined to seek advice from the company’s attorneys and participate in privileged legal discussions for the company’s benefit. Further, company counsel will be disinclined to provide written legal advice. “A client cannot fully and candidly discuss its situation with counsel if the client must worry that such confidences could be used to implicate him in the very crimes for which he hired that attorney to defend him, significantly undermining the lawyer-client relationship.” *Prevezon Holdings Ltd.*, 839 F.3d at 238; *see also In re City of New York*, 607 F.3d at 942 (“[W]e have recognized that, for a privilege to serve its intended function, potential litigants must be able to predict which of their materials will be protected by the privilege.... Otherwise, potential litigants may become overly cautious in creating materials so as to not risk disclosing sensitive information in future litigation.”). Therefore, it is in the public’s interest that this issue be resolved to prevent uncertainty in the protections afforded to privileged communications in the corporate context.

Corporate theft is ever-present, so the Court’s ruling in this case stands to have broad implications for the attorney-client privilege in the corporate context.

Corporate data breaches continue to rise.⁴ Targeted corporate espionage for anti-competitive purposes—like the theft that occurred in this case—also remains a constant threat to companies.⁵ And, recent DOJ policy has encouraged corporate whistleblowers to come forward and has prioritized the prosecution of executives over companies.⁶ Corporate executives, therefore, are keenly aware of the possibility that their companies’ most sensitive data, including privileged material, may end up in the hands of hackers, thieves, and claimed whistleblowers, who may publicly disclose it or directly turn it over to authorities. If courts permit the DOJ, absent waiver, to use stolen privileged information to prosecute corporate executives, few executives will take the risk of gathering and memorializing sensitive communications and information that is necessary for company counsel to render legal advice.

Moreover, the issuance of a stay will not substantially injure the prosecution. Indeed, in granting a stay pending appeal of a privilege ruling, courts have held that “[a] mere assertion of delay does not constitute substantial harm.” *United States v.*

⁴ Stuart Madnick, *What’s Behind the Increase in Data Breaches?*, Wall St. J. (March 15, 2024), <https://www.wsj.com/tech/cybersecurity/why-are-cybersecurity-data-breaches-still-rising-2f08866c>.

⁵ *Combating Economic Espionage and Trade Secret Theft: Hearing Before the Subcomm. on Crime & Terrorism, S. Judiciary Comm.*, 113th Cong. (2014) (statement of Randall C. Coleman, Assistant Director, Counterintelligence Division, Federal Bureau of Investigation), available at <https://www.fbi.gov/news/testimony/combating-economic-espionage-and-trade-secret-theft>.

⁶ *See, e.g.*, Memorandum from U.S. Dep’t of Just., Department of Justice Corporate Whistleblower Awards Pilot Program (Aug. 1, 2024); Lisa Monaco, Deputy Att’y Gen., Keynote Remarks at the ABA’s 39th National Institute on White Collar Crime (Mar. 7, 2024).

Philip Morris Inc., 314 F.3d 612, 622 (D.C. Cir. 2003). Granting the stay would simply maintain the status quo existing before the district court's orders. *SEC v. Citigroup Glob. Mkts. Inc.*, 673 F.3d 158, 168 (2d Cir. 2012) (finding that no risk of injury to the interested parties existed because the stay had the effect of maintaining the status quo prior to the district court's order).

In addition, if the stay is not granted and the government continues to prepare for trial before the Supreme Court's ruling, it will be a waste of resources. The government will not only prepare its case without knowing this Court's ruling, but it will also have to litigate the admissibility of the Stolen Privileged Documents on other grounds. Furthermore, it was the government's slow drip of information in this case that dragged this issue out and did not allow defendants to raise this issue earlier. The government concealed the Stolen Privileged Documents for years; indeed, the government did not disclose that the FBI and EDNY had the Privileged Outline and Privileged Risk Assessment in their possession until September 2024 and October 2024, respectively. And, in fact, the government had the § 3500 material in its possession for years that demonstrated that the Stolen Privileged Documents were used as a guide to investigate and build the prosecution. That material was not disclosed until November 2024.

Accordingly, the government cannot now argue that a stay of the proceedings will prejudice it when its delay in disclosing this issue has irreparably harmed defendants. The defendants' constitutional rights must outweigh the public right to

a speedy trial, and there is no indication that the government will be prejudiced by a stay for this issue to be resolved.

CONCLUSION

For the foregoing reasons and the reasons set forth in the Petition, this Court should grant the emergency stay and expedite the Petition. Defendants are on bond and remain in full compliance with the terms and conditions of their pretrial release. Any time this Court spends considering the petition for a writ of mandamus is excludable time under 18 U.S.C. § 3161(h)(c).

RESPECTFULLY SUBMITTED,

Date: April 21, 2025

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